

		with a Disability (ROA 7); (2) Ex Parte Application for Appointment of Guardian ad Litem—Civil and Family Law (ROAs 17 & 20); (3) Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (ROA 8); and (4) Ex Parte Order Appointing Guardian ad Litem—Civil and Family Law (ROAs 18 & 24). The admissible evidence before the court is sufficient to establish that there is an overriding interest that overcomes the right of public access to the unredacted versions of those documents. The admissible evidence is also sufficient to establish a substantial probability that a failure to seal the redacted portions will prejudice that overriding interest. That proposed sealing is narrowly tailored, and no less restrictive means exists to achieve the overriding interests other than sealing the documents. The motion is GRANTED and the unredacted documents will be sealed. Petitioner is directed to give notice.
3	Smith – Trust (2023-01355718)	Motion to Compel; Motion for Order Petitioner Brian Alexander Smith’s Motion for Order Permitting Alternate Service and Electronic Service (ROA 569) is DENIED. Petitioner Brian Alexander Smith’s Motion to Compel Compliance with Deposition Subpoena for Production of Business Records [from Fay & Lawler] (ROA 556) is DENIED. <u>Motion for Order Permitting Alternative Service.</u> By his motion, Petitioner seeks an order permitting alternate service on respondent Lou Ann Kelly by email and permitting electronic service on all counsel of record. He asserts he has not been able to serve Lou Ann Kelly “by standard methods despite reasonable diligence” and that printing and mailing numerous filings has imposed a financial burden. Petitioner does not specifically identify the documents he would like to be able to serve by email or other alternate means on Lou Ann Kelly and he does not identify the documents he would like to be able to serve by email or other alternate means on the remaining parties. While the court might have authority to allow for email or another alternate method of serving certain

		documents on certain people, it would not be appropriate to give Petitioner a blank check to serve by email every document in this proceeding on every person entitled to service. Further, Petitioner does not cite any legal authority in support of his request. For example, the court is not aware of any statute or appellate opinion that would allow the court to permit Petitioner to serve a deposition subpoena for production of business records on the deponent by email, or in any way other than personal service. (See Code Civ. Proc., § 2020.220(b) & (c)(2); Prob. Code, § 1000.) This lack of authority is further complicated by the second issue discussed above, because the type of service required varies by the type of document/notice being served and the person receiving the service. (See, e.g., Prob. Code, §§ 851 [notice of hearing on petition under section 850, et seq.], 17203 [notice of hearing on petition under section 17200, et seq.].) Nothing in this order limits Petitioner's right to ask the court to allow him to serve specific documents to specific people in different ways, and any right Petitioner may have to ask the court to dispense with notice of specific documents or notices on specific people. Any such requests must be in a procedurally appropriate way and supported by an adequate factual basis and citations to applicable law. <u>Motion to Compel.</u> By this motion, Petitioner seeks to compel Fay & Lawler to produce further documents in response to a subpoena. Neither the motion nor the accompanying declaration include the subject subpoena. Accordingly, the court has nothing upon which to issue an order compelling appearance and production. (The court notes the subpoena was untimely included in the reply brief.) Further, Fay & Lawler's opposition is supported by a declaration from Thomas C. Lawler averring all responsive documents within his possession have been produced and nothing has been withheld. Accordingly, there is nothing for the court to compel. The court will provide notice.
4	Slotkin – Trust (2024-01443912)	Motion to Enforce Settlement Petitioners Deborah Carpenter and Randal Slotkin's Motion to Enforce Settlement Order Pursuant to Code of Civil Procedure §664.6 and for Attorneys Fees and Costs Under Terms 10 and 18 of the June 10, 2025 Settlement Order (ROA 199) is DENIED.